

Co-Founder Agreement Template

FOUNDERS' AGREEMENT

Effective Date: [DATE]

This Founders' Agreement ("Agreement") is entered into by and between the following individuals (collectively, the "Founders"):

1. [FOUNDER 1 NAME] - [Address]
 2. [FOUNDER 2 NAME] - [Address]
 3. [FOUNDER 3 NAME] - [Address](#)
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1. THE COMPANY

1.1 Formation

The Founders agree to form [COMPANY NAME](#), a Delaware corporation, to pursue the business described below.

1.2 Business Purpose

The Company will engage in [DESCRIPTION OF BUSINESS].

1.3 Principal Office

The principal office of the Company shall be located at [ADDRESS].

2. EQUITY OWNERSHIP

2.1 Initial Equity Split

Founder	Ownership %	Number of Shares
[Founder 1]	[X]%	[X] shares
[Founder 2]	[X]%	[X] shares
[Founder 3]	[X]%	[X] shares
Total	100%	[X] shares

2.2 Vesting Schedule

All Founder shares shall be subject to the following vesting schedule:

- **Total Vesting Period:** 4 years
- **Cliff Period:** 1 year
- **Vesting After Cliff:** Monthly over remaining 36 months

Vesting Mechanics:

- 25% of shares vest on the 1-year anniversary
- Remaining 75% vest monthly over the next 36 months
- Unvested shares are subject to repurchase at original price upon departure

2.3 Acceleration

Single Trigger: [X]% acceleration upon Change of Control **Double Trigger:** [X]% acceleration upon termination without cause within 12 months of Change of Control

3. ROLES AND RESPONSIBILITIES

3.1 Initial Roles

Founder	Title	Primary Responsibilities
[Founder 1]	CEO	Overall strategy, fundraising, business development
[Founder 2]	CTO	Product development, engineering, technology
[Founder 3]	COO	Operations, finance, HR

3.2 Time Commitment

Each Founder agrees to devote their full business time and attention to the Company. No Founder shall engage in any other business activity without prior written consent of the other Founders.

3.3 Role Changes

Changes to Founder roles require unanimous consent of all Founders.

4. DECISION MAKING

4.1 Major Decisions

The following decisions require unanimous consent of all Founders:

- Raising capital or taking on debt
- Hiring or firing executive employees
- Entering into contracts over \$[X]
- Changing the Company's business direction
- Selling or licensing intellectual property
- Acquiring another company
- Selling the Company

4.2 Day-to-Day Decisions

Each Founder has authority to make decisions within their area of responsibility, subject to the budget approved by all Founders.

4.3 Deadlock Resolution

If Founders cannot reach agreement on a major decision after good faith discussion:

1. Mediation with a mutually agreed mediator
 2. If unresolved, binding arbitration
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5. INTELLECTUAL PROPERTY

5.1 Assignment

Each Founder hereby assigns to the Company all right, title, and interest in any intellectual property created in connection with the Company's business.

5.2 Prior IP

The following intellectual property, created prior to this Agreement, is contributed to the Company:

Founder	Description of IP	Ownership Transfer
[Founder 1]	[Description]	[Full/License]
[Founder 2]	[Description]	[Full/License]

5.3 Work for Hire

All work created by Founders in the course of their duties shall be "work for hire" and owned by the Company.

6. CONFIDENTIALITY

6.1 Confidential Information

Each Founder agrees to maintain the confidentiality of all Company information and not to disclose such information to any third party without prior written consent.

6.2 Duration

Confidentiality obligations survive termination of this Agreement indefinitely.

7. NON-COMPETITION AND NON-SOLICITATION

7.1 Non-Competition

During employment and for [1] year after departure, Founders agree not to engage in any business that competes with the Company.

7.2 Non-Solicitation

During employment and for [2] years after departure, Founders agree not to solicit Company employees or customers.

8. DEPARTURE OF A FOUNDER

8.1 Voluntary Departure

If a Founder voluntarily leaves:

- Unvested shares are forfeited
- Vested shares are subject to Company's right of first refusal
- Departing Founder must provide [30] days notice

8.2 Termination for Cause

If a Founder is terminated for cause:

- All unvested shares are forfeited
- Company may repurchase vested shares at fair market value
- “Cause” includes fraud, gross negligence, or material breach

8.3 Death or Disability

If a Founder dies or becomes disabled:

- All shares immediately vest
 - Estate/Founder retains all shares
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9. DISPUTE RESOLUTION

9.1 Mediation

Any dispute shall first be submitted to mediation.

9.2 Arbitration

If mediation fails, disputes shall be resolved by binding arbitration under [AAA/JAMS] rules in [CITY, STATE].

9.3 Governing Law

This Agreement shall be governed by the laws of the State of Delaware.

10. GENERAL PROVISIONS

10.1 Entire Agreement

This Agreement constitutes the entire agreement between the Founders regarding the subject matter hereof.

10.2 Amendments

This Agreement may only be amended by written consent of all Founders.

10.3 Severability

If any provision is found unenforceable, the remaining provisions shall continue in effect.

SIGNATURES

FOUNDER 1:

[Name] Date: _____

FOUNDER 2:

[Name] Date: _____

FOUNDER 3:

[Name] Date: _____

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